April 08, 2026

To whom it may concern,

I am writing on behalf of my clients, Mr. Olavo Pereira de Mello Neto (UCI: 11-2553-9388) and Mrs. Sandra Peres Caram Pereira de Mello (UCI: 11-2554-4708), regarding the refusal of their applications for a Work Permit under the Start-Up Visa Program and a Spousal Open Work Permit (Application Nos. W309327100 and W309327098).

We respectfully request reconsideration of the refusal decision dated March 31, 2026.

The refusal was based on the following findings:

1. The business is not actively operating in Canada
2. Insufficient evidence of significant economic, social, or cultural benefit to Canada
3. Insufficient justification for the necessity of operating the business from within Canada

With respect, we submit that these conclusions were reached **in the absence of material, time-sensitive, and outcome-determinative information**, which was not available to the Officer at the time of decision due to the extended processing period.

The applications remained under review for approximately one year. During this period, Bringfy transitioned from an early-stage validated concept into an **actively operating, revenue-generating, and market-integrated business within Canada**. This evolution is central to the concerns raised in the refusal and directly addresses each of them.

Crucially, the Applicants were not afforded an opportunity to provide updated documentation reflecting this material progression prior to the refusal. Given that the refusal relies significantly on **the absence of operational evidence**, procedural fairness required that the Applicants be given an opportunity to respond to these concerns before a negative determination was made.

The Applicants now submit comprehensive documentary evidence demonstrating that Bringfy is **actively operating in Canada in a continuous, structured, and commercially relevant manner**, including:

- Active onboarding and servicing of Canadian clients
- Deployment and ongoing use of a proprietary delivery platform
- Recorded financial activity, including transactions and revenue indicators
- Established partnerships and commercial relationships within Ontario
- Participation in a recognized Canadian incubation environment, with ongoing business development support
- Operational planning and execution aligned with Canadian market demand

This evidence directly contradicts the finding that the business is not operational or exists primarily in concept form. Instead, it establishes that Bringfy has reached a level of **functional execution consistent with early-stage Canadian startups supported under the SUV framework**.

With respect to the assessment under IRPR R205(a), we respectfully submit that the analytical approach applied appears to **conflate independent economic evaluation with program-specific criteria under the Start-Up Visa stream**.

Under the SUV program, the assessment of a business's innovation, viability, and economic contribution is **explicitly delegated to IRCC-designated organizations**, which conduct due diligence prior to issuing a Letter of Support and Commitment Certificate. In this case, such an endorsement was granted following formal evaluation.

While the Officer retains discretion to assess credibility and genuineness, including the Applicant's capacity to actively manage the business, it is respectfully submitted that this discretion should not extend to **reassessing the commercial merit of the business in substitution of the designated organization's determination**, absent evidence of misrepresentation or lack of genuineness.

In any event, the updated documentation clearly demonstrates that Bringfy generates tangible benefit to Canada through:

- Enabling small and medium-sized Canadian businesses to access scalable last-mile delivery infrastructure
- Supporting local economic activity through active service transactions
- Creating current and future employment pathways within Canada
- Introducing operational efficiencies and innovation in the logistics sector
- Establishing a foundation for scalable expansion within the Canadian market

These contributions are not speculative. They are **already in motion and supported by verifiable operational evidence**.

With respect to the necessity of physical presence in Canada, the refusal does not appear to fully consider the **operational nature of the business model**. Bringfy operates within a logistics and service-delivery environment that requires:

- Real-time coordination with local businesses and service providers
- On-the-ground management of partnerships and service execution
- Immediate responsiveness to market conditions and operational challenges
- Continuous development and adaptation of the platform based on local user behavior

As such, the Applicants' presence in Canada is not only justified but **operationally essential to the viability and continued growth of the business**.

It is also important to note that certain structural and documentary elements identified in earlier stages of the PR process, including incorporation timing, role clarification, and financial structuring, have since been **clarified, regularized, and supported by updated documentation**, further reinforcing the credibility and maturity of the business.

In light of the foregoing, we respectfully submit that:

- The refusal is based on an incomplete evidentiary record that does not reflect the current operational reality of the business
- The Applicants were not afforded procedural fairness in responding to concerns directly tied to evolving business activity
- The updated evidence fully addresses and resolves each of the Officer's stated concerns
- The designated organization's positive assessment should be given appropriate weight within the SUV framework

Accordingly, we respectfully request that the decision be reconsidered in light of the complete and updated evidentiary record now before the Officer.

Should further clarification or documentation be required, we remain available to provide it without delay.

Yours sincerely